

EXAMINATION SCHEME

B.A. L.L.B. (Hons.), Semester- IV

Subject wise marks allotted and corresponding credits (w.e.f-2019-20)

S. No.	Subject Code	Name of subject	Marks Allotted								Total Marks	Credit / Contact Hours per Week			Total Credits
			Theory		Internal Assignment		Practical / Viva-Voice					L	T	P	
			Max. Marks	Min. Marks	Max. Marks	Min. Marks	Max. Marks	Min. Marks							
1	BAL-401	Political Science - IV (Major)	80	32	20	8	0	0	0	100	5	1	0	6	
2	BAL-402	Language - I (Optional)*	80	32	20	8	0	0	0	100	5	1	0	6	
3	BAL-403	History - III (Minor)	80	32	20	8	0	0	0	100	5	1	0	6	
4	BAL-404 (A)	Administrative Law	80	32	20	8	0	0	0	100	5	1	0	6	
5	BAL-405 (A)	Family Law - II (Muslim Law)	80	32	20	8	0	0	0	100	5	1	0	6	
6	BAL-406 (A)	Labour & Industrial Law - I	80	32	20	8	0	0	0	100	5	1	0	6	
TOTAL			480	192	120	48	0	0	0	600	30	6	0	36	
			L: Lecture							T: Tutorial		P: Practical			

* Language - I (Optional):-

i. Optional-A (French - I)

ii. Optional-B (Hindi - I)

L: Lecture T: Tutorial P: Practical

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B.A. LL.B. (HONS.) PART-II SEMESTER - IV PAPER – I POLITICAL SCIENCE – IV (MAJOR)

UNIT - I Salient features of the British Constitution

1. Executive
2. Legislature
3. Judiciary
4. Party System

UNIT - II The constitution of United States of America (U.S.A)

1. Federal Executive.
2. The President of U.S.A.
3. Legislature-Congress
4. Judiciary
5. Party System in U.S.A.

UNIT - III The constitution of UK

1. Salient Features
2. Rights and duties of citizens
3. Federal Executive
4. Judiciary
5. Legislature

UNIT - IV The Constitution of Switzerland

1. Salient Features.
2. Federal Executive.
3. Federal Legislature
4. Swiss Federal Judiciary.
5. Direct Democracy in Switzerland.

UNIT - V Comparative studies of various constitutions

1. Constitutional amendment in U.S.A. & Switzerland.
2. House of lords of Britain & Senate of U.S.A.
3. U.S.A. President, British Prime Minister, Indian President & Prime Minister.

SELECT BIBLIOGRAPHY

1. Hood and Philips – Constitution of England
2. A.V. Dicey – Principle of Constitution
3. Wade and Philips – British Constitution and Administrative law
4. Corwin – US Constitution, What it means today
5. Mason and Benne – American Constitution

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B.A. L.L.B. (HONS.) PART-II SEMESTER - IV
PAPER – II (OPTIONAL-A) LANGUAGE – I (FRENCH-I)

UNIT - I Introduction

1. Introduction to French language.
2. Introduction to Alphabets and accent marks.
3. Numbers (cardinal / Ordinal)
4. Days of the week.
5. Articles (Definite/Indefinite)

UNIT - II Verbs

1. Introduction to the Group of Verbs
2. Ist Group of Verbs
3. Irregular Verbs
4. Months of the year
5. Genders

UNIT - III Parts of Speech

1. 2nd Group of Verbs
2. Professions in French
3. Sentence Formation.
4. Interrogatives
5. Parts of speech (Plurals, Adjectives)

UNIT - IV Preposition

1. 3rd Groups of Verbs.
2. Nationalities in French
3. Preposition
4. Geography of France

UNIT - V Miscellaneous

1. Small Essays
2. Unseen Passage
3. Translation in English
4. Translation in French
5. General Question.

SELECT BIBLIOGRAPHY:-

Le Nouveau Sans Frontiers I

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B.A. L.L.B. (HONS.) PART-II SEMESTER - IV
PAPER – II (OPTIONAL-B) LANGUAGE – I (HINDI-I)

UNIT – I भाषा का परिचय एवं संवैधानिक तथा वैधानिक परिप्रेक्ष्य .

1. मानक भाषा, 2. राजभाषा 3. संचार भाषा 4. सृजनात्मक भाषा 5. लक्ष्य भाषा 6. स्रोत भाषा

UNIT – II हिन्दी का भंडार

1. पारिभाषिक शब्दावली 2. प्रशासनिक शब्दावली 3. विधि की शब्दावली 4. तकनीकी शब्दावली
5. वैज्ञानिक शब्दावली

UNIT – III वाक्य रचना एवं उसके प्रकार

1. हिन्दी वाक्य रचना 2. वाक्य के प्रकार 3. लिपि की समस्याएँ एवं उनके समाधान
4. विराम चिह्नों का प्रयोग

UNIT – IV व्याकरण

1. संज्ञा 2. सर्वनाम 3. क्रिया 4. विशेषण 5. कारक

UNIT – V निबंध, संक्षेपिका एवं रिपोर्ट लेखन

1. विधिक विषयों एवं समस्याओं पर निबंध लेखन
2. सामान्य समस्याओं पर निबंध लेखन
3. संक्षेपिका लेखन एवं उसके नियम
4. घटनाओं का विवरण

SELECT BIBLIOGRAPHY:-

- | | | |
|---------------------------------|---|--|
| 1. प्रमाणिक प्रयोजन मूलक हिन्दी | – | डॉ. पृथ्वीनाथ पाण्डेय |
| 2. हिन्दी भाषा और उसका साहित्य | – | डॉ. कमलाकान्त |
| 3. हिन्दी भाषा संरचना | – | सम्पादक प्रो. त्रिभुवननाथ शुक्ल |
| 4. हिन्दुस्तानी कहावत कोश | – | एस. डब्ल्यू फैलन अनुवाद कृष्णानंद गुप्त |
| 5. समांतरकोश | – | अरविंद कुमार और कुसुम कुमार |
| 6. हिन्दी भाषा का इतिहास | – | शिक्षा मंत्रालय भारत सरकार धीरेन्द्र वर्मा |
| 7. हिन्दी भाषा इतिहास और स्वरूप | – | डॉ. राजमणि शर्मा |

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B.A. L.L.B. (HONS.) PART-II SEMESTER - IV PAPER – III HISTORY–III (MINOR)

UNIT - I Administration of Justice in Surat, Bombay, Madras and Calcutta

1. Emergence of the East India Company development of authority under charters
2. Trading body to a territorial power : subsequent charters,
3. Administration of justice in Surat,
4. Administration of justice in Madras from 1639 to 1726
5. Administration of justice in Bombay 1668-1726
6. Administration of justice in Calcutta 1619-1726.

The Mayors Court

1. Charter of 1726.
2. Provisions of the charter and working of judicial system
3. Charter of 1753
4. Defects of judicial systems

UNIT – II Adalat System

1. Grant of Diwani and Execution of Diwani functions
2. Judicial plan of 1772 and its Defects
3. New plan of 1774
4. Reorganization of adalats in 1780
5. Reforms of 1781 and The first civil code
6. Reforms in the administrations of criminal justice

The Regulating Act 1773

1. a) Case of Raja Nandkumar (1775) ; whether a judicial murder ?
b) The Patna Case (1777-79)
c) The Cassijurah Case (1779-80)
2. Act of settlement 1781
3. Major defects

UNIT III Law and administration in the Supreme Court

1. Supreme Courts at Calcutta, Madras and Bombay
2. Establishment of the High Courts
3. Charter Act, 1833
4. The Indian High Courts Act 1861
5. Charter of Calcutta High Court
6. Allahabad High Court
7. The Indian High Courts Act 1911
8. The Government of India Act 1915 : other High Courts
9. Government of India Act 1935 : more high courts created
10. Jurisdiction of high courts
11. Post constitutional developments – Emergence of federalism

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UNIT IV The Federal Court of India and privy council of India

- 1 Foundation of the Federal Court, its jurisdiction and Authority of Law
- 2 Expansion of Jurisdiction
3. Abolition of the Federal Court
- 4 An Assessment
5. Privy Council
 - (i) Jurisdiction, Reorganisation, Sui Generis body
 - (ii) Appeals from India
6. The Supreme Court of India
 - (i) Origin
 - (ii) Constitution
 - (iii) Jurisdiction and powers
 - (iv) Doctrine of precedents and the Supreme Court
 - (v) Recent changes

UNIT - V Growth of Legislature, Constitutional History

1. Development of legislative authorities in India from 1861-1935 (Constitutional Development)
2. Growth of Criminal Law
3. Growth of personal law of Hindus and Muslims
4. Influence of English Law in India
5. Prerogative writs in India
6. Racial discrimination
7. Growth of justice, equity and good conscience

SELECT BIBLIOGRAPHY:-

1. Courtney Libert, Government of India (1962)
2. Courtney libert, The mechanics of Law Making (1914)
3. M.P. Jain, Outlines of Legal History(1998) Tripathi,
4. M.P. Jain Constitutional Law of India(1987) Tripathi, Bombay
5. M. Rama Jois, Legal and constitutional History of India (1984) (Two volumes)
6. A.B. Keith, Constitutional History of India 1600-1936 (1936)
7. Rankin G.C. Background to Indian Law (1946)
8. V.D. Kulshreshtha's Landmarks in Indian Legal History (1992), Eastern Lucknow.
9. Eric Stakes, The English Utilitarians and India 1992, Oxford, Delhi.
10. Constitutional History – Pylee
11. Legal History – J.K. Mittal
12. Legal and Constitutional History N.V. Paramjape.

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B.A. L.L.B. (HONS.) PART-II SEMESTER - IV
PAPER – IV ADMINISTRATIVE LAW

UNIT-I Introduction

1. Meaning,
2. Administrative Law – The Concept definitions, nature, historical development, sources, relationship with Constitutional law),
3. rule of law and separation of powers,
4. classification of administrative functions and distinction between them.
5. Droit administrative,

UNIT –II Delegated Legislation

1. Meaning and its kinds,
2. Administrative directions
3. Distinction between delegated legislation and administrative directions.
4. Control over delegated legislation procedural, judicial and parliamentary control,
5. Principles of natural justice,
6. Civil services in India.

UNIT – III Administrative discretion

1. Judicial control of discretionary powers,
2. Act of State,
3. Tortious liability of the State.
4. Contractual liability of the State

UNIT –IV Government privileges in legal proceedings.

1. Meaning and kinds, Estoppel and Waiver
2. official secrets
3. right to information
4. lokpal and lokayukt
5. Central Vigilance Commissions
6. Commission of inquiry.

UNIT-V Administrative Tribunals-

1. Definition of Administrative Tribunals
2. Merits, demerits,
3. Reasons of growth
4. Distinction between courts and Tribunals
5. Public corporation - classification characteristics, controls, formation
6. Remedies - Constitutional and ordinary.


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SELECT BIBLIOGRAPHY:-

1. C.K. Allen, Law and Orders (1985).
2. D.D. Basu, Comparative Administrative Law (1998).
3. M.A. Fazal, Judicial Control of Administrative Action in India, Pakistan and Bangladesh (2000), Butterworths – India
4. Franks, Report of the Committee on Administrative Tribunals and Inquiries, HMSO, 1959.
5. Peter Cane, An Introduction to Administrative Law (1996) Oxford.
6. Wade, Administrative Law (Seventh Edition, Indian print 1997), Universal, Delhi.
7. J.C. Garner, Administrative Law (1989), Butterworths (ed.B.L.Jones).
8. M.P. Jain, Cases and Materials on Indian Administrative Law, Vol I and II (1996), Universal, Delhi.
9. Jain & Jain, Principles of Administrative Law (1997), Universal, Delhi.
10. S.P. Sathe, Administrative Law (1998) Butterworths, India, Delhi.

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B.A. L.L.B. (HONS.) PART-II SEMESTER - IV PAPER – V FAMILY LAW - II (MUSLIM LAW)

UNIT-I Muslim Law

1. Origin and development of Muslim Law,
2. Who is Muslim,
3. Conversion to Islam,
4. Nature and history of Mohammedan law.
5. Schools of Muslim law and sources of Muslim law

UNIT-II Marriage

1. Kind of Marriage, (Nikah) (Muta Marriage)
2. Option of puberty,
3. Divorce,
4. Dissolution of Marriage,
5. Marriage Act 1939,
6. Meher (Dowry).

UNIT – III Guardianship

1. Guardianship – elements, types
2. Maintenance-liability

UNIT-IV Will, Gift and Wakf

1. Wills,
2. Gift.
3. Doctrine of musha and pre-emption,
4. Wakf

UNIT-V Parentage and inheritance

1. Parentage and acknowledgement
2. Succession and Death bed transaction

SELECT BIBLIOGRAPHY: -

- | | |
|--------------------|--------------------------------|
| 1. Mulla | Mohammedan Law |
| 2. Dr. Paras Diwan | Muslim Law in Modern India |
| 3. Aquil Ahmed | Mohammedan Law |
| 4. Fyzee | Introduction to Mohammedan Law |
| 5. Schat | Mohammedan Jurisprudence |
| 6. Coulson | Principles of Mohammedan Law |
| 7. Jhabvala | Principles of Mohammedan law |

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B.A. L.L.B. (HONS.) PART-II SEMESTER - IV PAPER – VI LABOUR & INDUSTRIAL LAW -I

UNIT-I General Introduction

1. Industrial Jurisprudence
2. Labour policy in India
3. Industrial revolution in India, evils of Industrialization, Labour problems.
4. Growth of labour legislation in India.

UNIT-II Industrial dispute Act, 1947

1. Short title, definition & authorities
2. Notice of change
3. Reference of certain industrial disputes to grievance settlements Authorities, board, courts, tribunals.
4. Power procedure & duties of authorities.
5. Strike, lock out, lay, Retrenchment.
6. Penalties.

UNIT-III Trade Union Act, 1926.

1. Registration of trade union, recognition of trade union
2. Rights & Liabilities of registered trade union.
3. Regulation.
4. Penalties & procedure.

UNIT-IV Wages

1. Payment of wages Act 1936
2. Minimum wages Act 1948
3. Introduction & definition
4. Minimum wages : fixation & procedure.
5. Authorities under the Act
6. Fixation of hours of work & wages
7. Claims & their determination
8. Cognizance of offence
9. Maternity Benefit Act
10. Equal Remuneration Act

UNIT-V Factories Act 1948 and Insurance

1. Introduction, definition, registration & licencing
2. The inspecting staff
3. Health
4. Safety
5. Welfare
6. Working hours of adults
7. Females and children not to be employed in hazardous jobs
8. Annual leave with wages
9. Penalties & provisions.
10. Employees State Insurance Act.

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SELECTED BIBLIOGRAPHY:-

1. John Bowers and Simon Honeyball, Textbook on Labour Law (1996), Blackstone, London.
2. Shrivastava K.D. Commentaries on payment of wages Act 1936 (1998), Eastern, Lucknow.
3. Shrivastava K.D. Commentaries on minimum wages Act (1948) (1995), Eastern Allahabad.
4. Rao S.S. Law and Practice on minimum wages (1999), Law Publishing House, Allahabad.
5. Seth D.D. Commentaries on Disputes Act 1947 (1998), Law Publishing House, Allahabad.
6. Shrivastava K.D. Commentaries on factories Act 1948 (2000), Eastern Lucknow.
7. R.C. Saxena Labour problems and social welfare.
8. V.V. Giri Labour problems in Indian Industries.
9. O.P. Malhotra, The Law of Industrial Disputes (1998) Universal Delhi.
10. S.C. Srivastava, Social Securities and labour laws pts. 5 and 6 (1985), Universal Delhi.
11. S.C. Srivastava, Commentary on the Factories Act 1948), Universal Delhi.
12. Industrial Adjudication ILI, 2003 New Delhi.
13. Labour and Industrial Laws – Dr. V.G. Goswami
14. Labour and Industrial Laws – S.N. Mishra
15. Labour law – Indrajeet Singh